IN THE NATIONAL COMPANY LAW TRIBUNAL, NEW DELHI
COURT-V
(Special Bench)

Item No.-519

CP (CAA) No. 60/230/232/PB/2021

IN THE MATTER OF:
Celestial Finhold Pvt. Ltd. With Celestial Knits & Fabs Pvt. Ltd. **....Applicant**

SECTION
U/s 230-232

Order delivered on 13.07.2022

CORAM:
SHRI P.S.N PRASAD
HON'BLE MEMBER (JUDICIAL)

SHRI RAHUL BHATNAGAR,
HON'BLE MEMBER (TECHNICAL)

PRESENT:
For the Applicant : CS RS Bhatia
For the Respondent : Adv. Swechcha Mishra for RD

ORDER

The Authorised Representative for the Applicant Company has appeared and the Proxy Counsel for RD has appeared. None has appeared on behalf of OL. The Counsel for OL has filed their report in which they have stated that they have no objection in this matter. The Proxy Counsel for RD has stated that they have no objection in allowing the proposal. None has appeared on behalf of Income Tax Department Counsel. Applicant is directed to file an undertaking that the Transferee Company will bear the income tax and will be responsible to pay the income tax dues, if any, by the Transferor Company. They will also file the last 3 years income tax return of both the Companies. Post this matter on **05.08.2022.**

Sd/-
(RAHUL BHATNAGAR)
MEMBER (T)

Sd/-
(P.S.N PRASAD)
MEMBER (J)

Khushboo